COLLECTIVE BARGAINING AGREEMENT

between

SAWTST, LLC

and

International Union of Operating Engineers, Local147

April 1, 2017- March 31, 2020

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ARTICLE ONE
PARTIES OF AGREEMENT

This Agreement, made and entered into this 1st day of April 2017, between SAWTST, LLC, and ProLog, Inc., hereinafter referred to as the Company, and the International Union of Operating Engineers, Local 147 hereinafter referred to as the Union as deemed appropriate and meaningful to articles, sections and provisions of this Agreement.

The parties signatory hereto recognize this Agreement as binding upon the Company and the International Union of Operating Engineers, Local 147, and its signatory hereto, for all eligible organized employees of the Company and performing work on the Defense Logistics Agency contract.

ARTICLE TWO
RECOGNITION

Based on the representations of the Union, the Company recognizes the Union as the sole and exclusive representative for the purpose of bargaining with respect to wages, hours, and other terms and conditions of employment.

The term "employee" as used herein shall include only those individuals employed by the Company and providing logistics support at NNSY at Portsmouth, VA within the job classifications listed in Article Twenty-Four-Classifications. The term does not include employees of the Company at other locations or project sites.

ARTICLE THREE
PURPOSE AND INTENT

It is the intent and purpose of the Company and the Union to set forth herein the entire Agreement with respect to wages, hours, and working conditions as relates to the Defense Logistics Agency Contract covered by this Agreement. Further, it is the intent of the parties to secure maximum efficiency of the operation and maximum production of the employees; and to provide a fair and prompt grievance procedure for the peaceful settlement of employee's grievances; and to provide that there shall be no interruption and impeding of operations during the term of this Agreement.

ARTICLE FOUR
UNION SECURITY CLAUSE

All employees covered by this Agreement, where applicable by law, shall as a condition of employment, become and remain a member of Local 147 on and after their sixty-first (61st) calendar day of employment.

The Union shall indemnify, defend and hold harmless the Company against any and all claims, or liabilities arising out of the administration of this Article.

ARTICLE FIVE
DUES CHECK-OFF AND AUTHORIZATION FORM

Section 1. Upon presentation to the Company of a signed check-off authorization form signed by an employee on the wage assignment form printed below, the Company will deduct from the wages due such employee for each pay period, the amount of the Union dues (and initiation fee, as appropriate) uniformly required as a condition of acquiring or maintaining Local Union membership. The amount of weekly dues and the amount of the initiation fee shall be fixed by the Union in accordance with the Constitution and Bylaws of the Local Union and shall be certified to the Company by the Financial Secretary of the Local Union as being so fixed.

Section 2. The wage deductions referred to in Section 1 of the Article will be remitted monthly by check made payable to the Local Union having jurisdiction within fifteen (15) days following the month in which such deductions are made. Together with the monthly check, the Company will forward a list of the employees for whom deductions have been made.

Section 3. A check-off authorization or revocation shall become effective on the first day of the pay period following the week in which it is delivered to the Company.

Section 4. In the event the Local Union shall inform the Company of the omission of a dues or initiation fee deduction as to a particular employee for whom a wage assignment form was timely filed, the deduction shall be made out of the next weekly earnings of adequate amount for that employee following the notice from the Local Union, as long as no revocation letter was timely filed.

Section 5. The Local Union shall indemnify, defend and hold harmless the Company against any all claims or liabilities arising out of the administration of this Article.

Section 6. The dues authorization and assignment is made pursuant to Section 302 of the National Labor Relations Act, as amended, and is in full force and effect to the extent permitted by that Act.

Section 7. For the purpose of this Article, wage assignments shall be in the following form:

I hereby authorize and request my employer, ______________________________ to deduct an initiation fee in the amount of $_______, and such amount of money equal to monthly Union Dues as may be from time to time certified to the Company by Local 147 I.U.O.E, in equal weekly/monthly amounts, for each week/month I am compensated and to forward such deduction to the Financial Secretary of the Local Union hereinabove designated. Weekly deductions shall be included in the month in which the week ended.

This authorization shall remain in effect and be irrevocable until the anniversary date of the current Agreement and shall automatically renew itself and be irrevocable until successive anniversary dates unless revoked by me at ten (10) days, but not more than twenty (20) days, prior to any anniversary date by notifying the Company and the Union by registered mail of my desire to cancel said authorization.

DATE____

SIGNED____

ARTICLE SIX RIGHTS OF MANAGEMENT

Except as specifically limited by the expressed language of this Agreement, the Company has and retains exclusively to itself, all rights in the exercise of the functions of Management, including, but not limited to the following rights: to manage and operate its business facilities; to direct its employees; to direct, plan and control all operations; to establish and/or change existing methods, productivity standards, materials, equipment, facilities and accounting methods; to determine what products shall be handled or distributed and services or work performed at its facilities or by employees covered by this agreement and/or where they shall otherwise be handled or services and/or work performed to utilize suppliers and subcontractors; to test, select and hire employees and assign them to work as needed; to establish hours of work; to transfer, promote and demote employees; to suspend, discipline, and discharge employees or relieve them from duty for lack of work or for other proper reasons; and to establish and enforce rules and regulations relating to the operation of any and/or all facilities and to employee conduct.

ARTICLE SEVEN
NO STRIKE - NO LOCKOUT

Section 1. No Strike. During the term of this Agreement there shall not be, nor shall the Local Union, its agents, or members, for any reason, authorize, institute, aid, condone, or engage in, a work slowdown, work stoppage, picketing, or interference in any way whatsoever with the operation of the Company, or any part or facility of it for any reason whatsoever.

Section 2. No Lockout. During the term of this Agreement, so long as there is no breach of the other sections of the Article, the Company shall not lockout employees covered by this Agreement.

ARTICLE EIGHT
BARGAINING UNIT WORK

Employees of the Company who are not covered by this Agreement shall not perform any work or operation normally performed by an employee covered by this Agreement except: (1) in any emergency, including the need to meet requirements imposed by the

United States Navy; (2) in giving instructions to employees; (3) checking the work of employees; (4) when testing and/or developing new equipment, processes or measuring production standards; (5) where necessary for the Company to generate compensation for said employee's work under its Contract.

ARTICLE NINE
SAFETY

Section 1. The Company shall provide all safety equipment required by the Navy or other government authority excluding safety shoes, which shall be purchased by the employee. The Company agrees to provide safety gloves as required for a job on a company-owned employee-issue basis. Equipment provided to the employee will be on an issue basis and the employee will be responsible to the Company for the expense of replacement in the event the equipment is not properly returned. The company will reimburse full-time employees the first seventy-five dollars ($75.00), toward the replacement of approved safety shoes on an annual basis after the first year of employment provided written proof of purchase (receipt) is provided by the employee.

Section 2. The parties agree that the employees must comply with all applicable regulations pertaining to safety and dress standards.

Section 3. The Company may require drug testing in accordance with the requirements of the U.S. Government or in the event of any vehicular accident involving injury or property damage involving forklifts or other mobile vehicles.

ARTICLE TEN
BULLETIN BOARDS

The Company agrees to allow the posting of notices of Union business and meetings on existing bulletin boards at those sites where Union members are routinely working.

ARTICLE ELEVEN
COMPANY RULES

The Company may establish rules at any time and from time to time so long as such rules are not in violation with the terms of this Agreement. The Company will provide a copy of the rules it puts into effect to Local 147, for information or discussion, as soon as possible. Response from the Union pertaining to any or all potential rules must be received by the Company within thirty (30) calendar days from the time they are received by the Union. The decision of putting rules into effect rests solely with the Company. The reasonableness of any rule may be challenged through the grievance procedure. Copies of rules will be posted in permanent work areas.

ARTICLE TWELVE
SENIORITY

Section 1. Seniority is measured by the employee's length of continuous service. After an employee has completed a probationary period of 60 days, the employee shall gain seniority and his seniority date shall be the first day he worked. Seniority for employees hired on the same date will be determined by the alphabetical order of the employees' last name.

Probationary employees have no seniority status and may be disciplined or discharged without cause and without recourse to the grievance procedures.

Seniority shall be terminated by:

1. voluntary termination of employment by the employee;
2. discharge for cause;
3. out of active service with the Company for a period of twelve (12) consecutive months;
4. failure to respond to notice of Recall as set forth in Article Fourteen;
5. absence without notification for three (3) consecutive work days.

Any employee with seniority who is absent for less than twelve (12) consecutive months because of documented illness, job related injury, or layoff shall continue to accrue seniority during such absences.

Section 2. Within thirty (30) days after signing this Agreement and annually thereafter, the Company shall post in a conspicuous place, and shall mail to the Local 147 having jurisdiction, a list of the employees covered by this Agreement arranged according to their seniority. Protests to any employee's position on such list must be made in writing to his/her supervisor. Upon any correction, the corrected list will apply.

Section 3. Seniority, within regular classification, shall be the determining factor in matters affecting reduction in force, promotion, demotion, recall, transfer and the filling of vacancies provided the senior employee possesses the ability to perform the job. For the purpose of this Agreement "ability to perform the job" is defined as having acquired the proficiency to do that type of work productively. The Company's determination of abilities of the employees to be considered for reduction in force, recall, transfer and the filling of vacancies shall be final unless it is established, through the grievance procedure, that such determination was made without reasonable justification.

Section 4. Reduction in Force. In order for a senior employee to displace a less senior employee as a result of a reduction in force, the senior employee must demonstrate his ability to equal or exceed the average production rate being achieved by the group of employees he will begin working on similar work under similar circumstances and achieve such proficiency as of his third day doing the work.

Section 5. Recall shall be handled in accordance with Article Thirteen.

Section 6. Transfers.

Permanent reassignments/vacancies

a. For the purpose of this Article "permanent" is defined as those cases where the job and position are expected to be ongoing in nature.

b. The Company will post vacancies on a bulletin board in a central location and the supervisors will make the employees aware of the vacancies. Within five (5) working days of the posting of the vacancy, all interested employees may sign up requesting that they be considered for the job. The Company will then, within ten (10) days of posting, award the position as follows. The Company will provide a listing of new jobs, and/or job openings, to the area Shop Steward when they occur, but no less than weekly. Additionally, the Company shall post vacancies and application procedures on the company website and the union bulletin board. The website will be provided to each employee at the time of hire.

Section 7. The Company may initially fill immediate demands placed upon it by the Government without regard to seniority or the posting requirement if once the posting is accomplished then the provisions of this Article will be acted upon.

Section 8. The Company will notify affected employees of impending layoffs at such time as the Company becomes officially aware of or is officially notified of a reduction in available work.

ARTICLE THIRTEEN
RECALL

Section 1. A laid-off employee shall be given at least twelve (12) hours' notice of recall by telephone. Should the Company fail in its attempt to reach a laid-off employee by telephone, a certified letter (return receipt required) will be sent to the employee at his/her last known address or the address the employee has stated he/she can be reached in the event of recall. Upon receipt of this letter the employee must report for work no later than his/her regular reporting work time (or at the time specified in the letter) of the regular work day following receipt of the letter. It is the responsibility of the employee to keep the Company informed of their correct address and phone number.

Section 2. In the event that the employee fails to make himself available at the time and place specified in the telephone call or letter, the employee shall lose all seniority rights under this Agreement, except when the Company has granted written permission for a delay in reporting. Loss of seniority and recall rights will not occur where there is a verifiable reason beyond the control of the employee for the delay in reporting. Said employee shall not, however, bump another recalled employee but would be eligible for subsequent recall.

Section 3. Employees who are recalled by telephone who have less seniority than other employees on the layoff list cannot be displaced by a more senior employee responding to the written recall notice until five (5) work days have elapsed.

ARTICLE FOURTEEN
LEAVES OF ABSENCE

Section 1. Personal reasons. The Company may, in its sole discretion, allow an employee a personal leave of absence if requested in writing of up to six (6) months without pay and in accordance with its Company policy on such matters. Provided that a requested leave of absence for personal reasons will not interfere with the efficient operation of the Company's business, the Company will not unreasonably deny a request for such leave.

Section 2. Military Leave. Any employee who enters the Armed Forces of the United States shall have the right to reinstatement in his former job and other re-employment rights in accordance with applicable Federal law.

Section 3. Procedure Upon Return. If upon the expiration of this leave of absence, the employee would have been laid off in accordance with the application of this Agreement notwithstanding his leave of absence, the employee shall go immediately on layoff. If layoff is not appropriate, and if the employee returns on the expiration date of his leave, the employee shall be placed in his previous job, or in a comparable job, provided he is qualified to perform such job.

Section 4. Outside Employment Exclusion. A leave of absence will not be granted and shall not be used to enable an employee to try for or accept employment elsewhere or for self-employment.

Section 5. Union Business. Any employee who may be elected an officer, or appointed a delegate to represent the Union shall be granted a leave of absence for the period of time required without pay. The Union shall give the Company written notification no less than five (5) working days prior to the leave of absence. This notification shall provide the name(s) of the person(s) involved and the probable start and stop dates of the leave of absence.

Section 6. The Company shall, upon written application, grant a leave of absence without pay for a period of not to exceed twelve (12) months, for illness or injury (including work-related) that prevents the employee from working. The employee shall be required, as soon as possible, to substantiate his reason for his inability to work and the anticipated time that he will be absent from work. The Company must be notified of any extensions of absence beyond the date initially given and the expected new date of return to work. Any leave granted under this section shall run concurrently with leave available to the employee under the Family Medical Leave Act.

Section 7. Any employee who is called for jury duty will be paid for their regular hourly rate for the time that they are serving as a juror less the compensation paid by the court up to a maximum of five (5) days.

ARTICLE FIFTEEN
SHOP STEWARDS

Section 1. The Company recognizes the necessity for the Union to designate Shop Stewards from the Company's employees but no more than two (2) Stewards will be designated at each work site unless mutually agreed upon. All Stewards shall be appointed by the Local Union having jurisdiction of the work site and the Company shall be notified in writing of all such appointments.

Section 2. It is agreed upon and understood that the Steward is to continue to be a productive, contributing and working employee of the Company subject to all the normal and usual rules and regulations of any other employee. However, the Steward will be granted permission, when requested, to receive and process grievances in and about those work sites for which he is responsible normally between the hours of 11:00 a.m. and 1:00 p.m. The Company will grant permission for the Steward to receive and process grievances outside these time frames when circumstances make it appropriate to do so.

Section 3. Employees working shipboard or at remote locations where no Steward is on site will have access to his steward through his supervisor. Each employee covered by this Agreement must go to his supervisor to request a Steward's presence. The supervisor will insure the employees request is passed to the appropriate steward within four (4) on-duty hours of having received the request from the employee. "Request for Steward Assistance" forms will be filled out in duplicate by the appropriate Steward's Supervisor and presented to the Steward who will sign and date/time both forms retaining one for himself and returning one to his supervisor.

Section 4. It is mutually understood that the Steward selected must be able to conduct himself in a professional manner and maintain channels of communication.

Section 5. To the greatest reasonable extent possible, the Company will not transfer or reassign a Steward away from his usual work place. This is to ensure ready accessibility of the Stewards to the employees and to standardize the usual locations of the Stewards. Shop Stewards shall have Super Seniority in order to maintain proper representation for the employees. Super Seniority shall apply only to layoff, recall, reduction in force, and transfer.

ARTICLE SIXTEEN

DISCIPLINE

Section 1. No employee shall be discharged or disciplined without just cause, nor in a manner nor for any reason which violates the terms and conditions of this Agreement. The employees may seek proper recourse under the grievance procedure if he or she feels he has been unjustly disciplined.

Section 2. The Company's Standard Schedule of Disciplinary Offenses and Penalties for Employees will be posted at all major work sites and personal copies made available upon request to employees. Employees guilty of a violation of Company Rules shall be disciplined in accordance with the Standard Schedule of Disciplinary Offenses and Penalties for Employees (Appendix A hereto).

Section 3. The Company will provide the employee and the Shop Steward with a written explanation as to any and all disciplinary actions taken against the employee within one (1) work day of the action.

Section 4. All employees are expected to be at their assigned work stations, ready to work (which shall include, but not be limited to, dressed in appropriate safety gear as required hereunder and in the Company's policies and procedures, on time, at the time specified for the beginning of their shift, and to remain at their work until the end of their assigned shift, or until specifically relieved by their supervisor.

Section 5. All absences shall be considered unexcused except in the following instances:

a. When the employee has requested the time off in advance, in writing, and the Company has granted permission to be absent in writing.

b. When the employee is on an approved leave of absence, vacations, bereavement leave, holiday or other form of authorized leave.

c. When the employee notifies the Company prior to or within one hour of the start of the employees shift that the employee will not be present and then providing the employee offers an acceptable excuse.

Section 6. An acceptable excuse includes but is not limited to the following:

a. Too ill to work; substantiated by a doctor's slip for absences of two (2) days or more or for repeated absences two (2) or more occurrences in a six (6) month period stating that the employee was seen and exempted from work by the doctor for a medically verified condition which temporarily incapacitates the employee. Doctor's slip must be presented to the Company by the employee upon the employees return to work stating the duration of the employee's incapacitated condition.

b. Such other special circumstances as deemed acceptable to and at the sole discretion of the Company may be excused.

Section 7 The Government may direct the Company to remove certain individuals. It is understood that the Company may terminate any employee if directed to do so by the Government under the provisions of its Contract or if the Government denies the employee access to any of the work sites or government computer systems. The Company and the Local Union agree to intercede collectively or independently on the employee's behalf if there are extenuating circumstances which, in the opinion of the Parties, tend to make the decision made by the Government unfair to the employee. This is not, however, a grievable matter.

Section 8. The "non-personal services contract" awarded by the Defense Logistics Agency stipulates Government employees will not exercise any supervision or control over the Contractor's employees performing contract services and contract employees shall be accountable solely to the Contractor's Site Supervisor. Therefore, written and verbal exchanges between contract employees and government personnel regarding company business, employment issues, work assignments, pay disputes, human relations, etc. are prohibited. Such communications that involve government personnel in the employee/employer relationship will result in disciplinary actions outlined in Appendix B.

ARTICLE SEVENTEEN
GRIEVANCES

Section 1. Purpose. Any dispute regarding the interpretation and/or application of this Agreement and any charge of violation of this Agreement may be resolved through the grievance procedure. The grievance procedure shall serve as the exclusive means to resolve any such dispute(s), or charge(s). The time frames referred to in this Article may be extended by mutual consent of the Company and the Union.

Section 2. Grievance Procedure. Grievance shall be raised and processed while facts and recollections are still fresh and available. All employee grievances must be presented within three (3) working days, (excluding Saturdays, Sundays, and Holidays) after the event giving rise to the grievance becomes known, or reasonably should have been known, to the employee. The procedure for discussing and settling a grievance shall be as follows except an authorized representative of the Union may submit grievances directly to the third (3rd) step of the grievance procedure in those cases where a policy issue is involved and the Company representatives mentioned in the first two steps do not have the authority to respond to, or settle the grievance.

Grievances shall be on a form provided by the Union and shall state, when possible, the article of the Contract violated, a description of the Act which is allegedly in violation of the Agreement, name of the grievant, the remedy sought and will be signed by the grievant and/or Steward.

Step One
The grievant shall discuss the grievance with his immediate supervisor, specifically telling the supervisor that this may be a subject for the second step process of the grievance procedure. He may bring with him his shop steward (or assistant shop steward) if he so desires. If this discussion does not resolve the matter, the supervisor shall give his answer to the employee by the end of the second working day following the day of the oral discussion.

Step Two
The step one answer shall settle the grievance unless the grievance is placed in writing and delivered to the Company's Site Manager within three (3) working days after the day on which the Step One answer was given. The written grievance shall state the facts of the grievance and shall cite the provisions of this Agreement, if any, that are claimed to have been violated. The written grievance must be dated and signed by the shop steward (or assistant shop steward) and/or by the grieving employee(s). The Company Site Manager shall meet with the shop steward, the aggrieved, and witnesses promptly to discuss the grievance and any settlement arrived at shall be reduced to writing and signed by both parties. The Site Manager's step two answer shall be given in writing to the shop steward within three (3) working days following the day of the meeting.

Step Three
The step two answer shall settle the grievance unless it is appealed to the Company's Designated Representative within five (5) days of the shop steward's receipt of the step two answer. The Company's Designated Representative shall meet with the Unions' Authorized Representative promptly to discuss the grievance and any settlement arrived at shall be reduced to writing and signed by both parties. If no settlement is achieved, the Company's step three answer shall be given in writing to the Union's Authorized Representative within five (5) working days following the day of the meeting. The step three answer shall settle the grievance unless it is appealed to arbitration in accordance with Article Eighteen.

Section 3. The shop steward shall be paid at his regular straight-time hourly rate for all time actually spent in processing a grievance(s). Each grievant and witness shall be paid at his regular straight-time hourly rate for all time actually spent and substantiated in steps one, two or three of this Article. The Union will hold the number of its' witnesses to the minimum needed to present its' case.

ARTICLE EIGHTEEN
ARBITRATION

Section 1. The Union may appeal a grievance to arbitration by giving written notice to the Company within fifteen (15) calendar days of the Company's step three answer. After such notice has been given, the parties shall jointly request the Federal Mediation and Conciliation Service to submit to them a list of the names of five (5) potential arbitrators. The first strike of names shall be alternated between the Union and the Company. Each shall strike one (1) name during their turn and the remaining name shall be the arbitrator.

Section 2. The arbitrator shall promptly schedule a hearing in the general area of the work site where the grievance arose, at which each party shall have the right to present evidence, examine and cross-examine witnesses, make a record, and file written arguments.

Section 3. The arbitrator shall consider only the issues raised in the step three grievance form, or in the writings involved in the "Grievance" Article, and shall have the power to interpret and/or apply the terms of this Agreement, without adding to, subtracting from, ignoring, or amending the express terms of this Agreement.

Section 4. The arbitrator must state his decision in writing within thirty (30) calendar days following the date of the hearing. The arbitrator's duly rendered decision shall be final and binding on the Company, the Union, and all employees.

Section 5. The fees and expenses of the arbitrator and the hearing room shall be shared equally by the Company and the Union. All other expenses shall be borne by the party incurring them.

ARTICLE NINETEEN
HOURS OF WORK AND OVERTIME

Section 1. Nothing in this Article shall be construed as a guarantee of a maximum or minimum number of hours of work per day, per week or per year.

Section 2. The work week shall be seven (7) consecutive days commencing at 12:01 a.m. Sunday and ending 12:00 midnight Saturday. The workday shall commence at 12:01 a.m. and run for twenty-four (24) consecutive hours each day of the work week. An employee's normal work week shall consist of five (5) consecutive, eight (8) hour days, Monday through Friday. An employee's normal workday shall consist of eight (8) consecutive hours, exclusive of lunch.

Section 3. When an employee works in excess of forty (40) hours in a work week, such work shall be classified as overtime and paid for at the rate of one and one-half (1-1/2) times his or her regular straight-time hourly rate. The Company agrees to not reschedule work for the purpose of offsetting overtime or holiday hours or pay. Hours paid for vacation and holidays shall not be counted as hours worked for overtime and shall not be counted towards the calculation of overtime. These hours will only be counted as straight time and not part of overtime calculations.

Section 4. The Company will make overtime available among those employees who normally perform the tasks for which overtime is required, and then by seniority insofar as practical among other qualified employees as determined by the Company.

Section 5. All employees working a six-hour or greater shift shall receive a one-half (1/2) hour unpaid lunch period. The Company has the discretion to schedule lunch periods. Any employee who is required to work during his/her lunch period as directed by the site supervisor shall receive one and one-half (1-1/2) times his regular straight-time hourly rate for that period.

Section 6. Each employee is entitled to fifteen (15) minutes break time in the first half and fifteen (15) minutes break time in the second half of his/her shift provided such shift is eight hours or longer. The Company has discretion to allow a "break" at the same time as other employees or at staggered intervals during the shift.

Section 7. Supervisors will canvas those employees currently working on the job for which overtime work is required, to determine if the overtime work can be performed by volunteers with the ability to perform the job prior to mandatory overtime assignments. Mandatory overtime will be assigned by inverse seniority within that job. If additional employees are required to work overtime upon completion of canvassing mandatory assignments such additional employees will be assigned by inverse seniority from other Company employees possessing the ability to perform the job for which overtime is required.

ARTICLE TWENTY
TEMPORARY TRANSFERS

An employee who is temporarily transferred to a job classification carrying a rate of pay higher than his regular classification shall receive the rate of pay applying to the temporary job for all time worked in that temporary job. If an employee is temporarily transferred to a classification carrying a lower rate of pay the employee shall continue to receive his/her regular rate of pay.

ARTICLE TWENTY ONE
PAID HOLIDAYS

Section 1. The following are the paid holidays for all employees:

- New Year's Day
- Washington's Birthday
- Memorial Day
- Independence Day
- Labor Day
- Martin Luther King's Birthday
- Columbus Day
- Veterans Day
- Thanksgiving Day
- Christmas Day

* One (1) Personal Holiday

Section 2. Holiday Pay Not Worked. An eligible employee who does not work on a holiday listed in Section 1 above shall be paid holiday pay of eight (8) hours of pay at his regular straight-time rate.

Section 3. Eligibility Rules. To be eligible for holiday pay an employee must:

a. Have successfully completed his probationary period; and
b. Have worked the last scheduled work day prior to and the first scheduled work day after such holiday, unless excused by management in advance, when possible. If the absence is due to an illness, a physician's note will be required to authorize the absence as excused.

Section 4. Work on Holiday. An employee who works on a shift which begins on a paid holiday shall be paid at a rate of time and one-half (1-1/2) his applicable straight- time hourly rate of pay for hours actually worked on the paid holiday.

Section 5. Holiday falling Within a Vacation. An employee shall receive the holiday pay for each holiday listed in Section 1 of this Article which occurs while the employee is on an approved vacation, as provided in this Agreement.

Section 6. Holidays wll be observed on the date established by the Federal Government. The personal holidays will be observed on the day of the employee's choosing so long as the day has been cleared with his/her immediate supervisor in advance (two working days minimum). Holidays which fall on Saturday or Sunday will be observed on Friday or Monday.

ARTICLE TWENTY-TWO
VACATIONS

Section 1. Length of Service Determination. Length of service for vacation shall be determined by the employee's length of continuous service with the Company and/or with any number of contractors from his anniversary date of employment on this contract or succeeding contracts covering this work which may be included under the present or future contract numbers.

Section 2. Vacation Pay. Eligible employees will be block granted vacation hours based on anniversary date according to the schedule below. Employees must use vacation prior to their next anniversary date. Unused vacation will be forfeited.

Number of Full Continuous Years of Service as of Anniversary Date	Maximum Yearly Vacation Pay Allowance
One to 4 years	128 hours
More than 4 years	168 hours
10 years and over	208 hours

Section 3. An employee who is terminated or quits prior to his/her anniversary date of employment shall be paid for all earned/vested but unused vacation to which he/she is entitled. In the event of a change of contractors and the employee is hired by the successor contractor, the successor contractor, and not the Company, becomes responsible for all accrued but un-credited vacation due the employee.

Section 4. Scheduling and Taking Vacations. As far as practicable, vacations shall be granted at times most desired by the employee, with preference to employees with greatest seniority in case of conflict, but final right to schedule vacation is reserved to the Company in order to ensure orderly and efficient operations.

Employees are responsible for requesting vacation with as much advance notice as possible. All requests for vacation usage must be submitted in advance to the employee's Manager or Supervisor for approval.

ARTICLE TWENTY-THREE
WAGES

Section 1. The classifications and regular straight time hourly rates of pay for all employees under this contract can be viewed in Appendix C.

Section 2. Lead-persons shall be a working member of a group who is responsible for leading, directing, instructing, on-the-job training, and checking or approving the work of his/her assigned group.

The Company, at its sole discretion, may assign employees to be a lead-person so long as the employee agrees to accept the responsibility of the position.

Lead-persons will receive a premium of $1.00 per hour in addition to his normal rate of pay.

Any employee required to have HAZMAT certification will receive fifty cents ($.50) per hour in addition to his regular pay.

Section 3. No employee covered by this Agreement shall receive a lesser rate of pay than they are currently receiving for work in their present job classification by reason of this Agreement being placed in effect.

ARTICLE TWENTY FOUR
CLASSIFICATIONS

Section 1. In the event new classifications are created, the Company and the Union will meet promptly to negotiate the proper classification description and the wage rates for the classification.

Warehouse Specialist: Performs a variety of warehousing duties that require an understanding of the establishment's storage plan. Work involves most of the following: verifying materials against receiving documents, noting and reporting discrepancies and obvious damages, routing materials to prescribed storage locations; storing, stacking, or palletizing materials in accordance with prescribed storage methods, rearranging and taking inventory of stored materials, examining stored materials and reporting deterioration and damage, removing material from storage and preparing it for shipment. This worker may operate hand or power trucks in performing warehousing duties. Excludes workers whose primary duties involve shipping and receiving work, order filling, or operating forklifts/power trucks. Warehouse Specialist shall possess a minimum of four years general supply experience of which at least two years' experience was spent performing warehouse duties. Required to bend, kneel, stoop, stretch, reach, carry, climb and lift weights up to fifty pounds. DOL Service Contract Act Directory of Occupations Category 21400 (Warehouse Specialist) Pertains.

Supply Technician: Performs a variety of technical supply management work in a number of specialized areas of expertise (e.g., inventory management, causative research, material expediting, material coordination for special programs, equipment validation/inventory, material identification and cataloging, storage management, allowance document preparation, property utilization, etc.) related to depot, local, or other supply activities. Work is usually is segregated by commodity area or function, and controlled in terms of difficulty, complexity, or responsibility. Required to bend, kneel, stoop, stretch, reach, carry, climb and lift weights up to fifty pounds. DOL Service Contract Act Directory of Occupations Category 01400 applies.

Assignments usually relate to stable or standardized segments of technical supply management operations; or to functions or subjects that are narrow in scope or limited in difficulty. The work generally involves individual case problems or supply actions which require consideration of program requirements together with specific variations in or from standardized guidelines.

Assignments require a good working knowledge of the governing supply systems, programs, policies, nomenclature, work methods, manuals, or other established guidelines; an understanding of the needs of the organization serviced; and sufficient analytical ability to define or recognize the dimension of the problems involved, to collect the necessary data to establish the facts, and take or recommend action based upon application or interpretation of established guidelines.

Supply Technicians shall have a minimum of six years' experience of which at least three years is specialized in the area of expertise required (i.e., expediting, causative research/record reconciliation, etc.).

a. **Inventory/Supply Records Reconciliation**. Supply Technicians with this experience perform research functions associated with correcting the disagreement between the warehouse and stock records. This person can perform independently in researching inventory records by developing audit trails from issue/receipt documents, transaction ledgers and other fifes at Naval Supply Centers or major stock points of DoD.

b. **Expediting.** Supply Technicians with this specialization requires extensive knowledge of Naval Supply System regulations, policies and procedures. Assignments involve a variety of supply related operations and situations in support of activities both afloat and ashore. Successful execution requires a thorough understanding of Navy/DLA requisitioning systems, an ability to determine an appropriate course of action based upon circumstances or conditions encountered and the ability to take action as appropriate. Also required is the ability to conduct detailed research for desired information in supporting records, publications and on files such as: computer listings, stock catalogs, requisition files, etc. Assignments are covered by and required application of standardized supply regulations, policies, procedures or other instructions relating to the specific functions assigned. In some situations, this requires familiarity with automated supply systems {ADP) and a knowledge of the complex coding structures for specific supply transactions and requisition status.

Specifications: Incidental use of personal computers (PCs) in the performance of primary tasking may be required. Supervise supply management projects.

Shipping Packer: This position prepares finished products for shipment or storage by placing them in shipping containers, the specific operations performed being dependent upon the type, size, and number of units to be packed, the type of container employed, and method of shipment. Work requires the placing of items in shipping containers, and may involve one or more of the following: knowledge of various items of stock in order to verify content, selection of appropriate type and size of container, inserting enclosures in container; using excelsior or other material to prevent breakage or damage, closing and sealing container, and applying labels or entering identifying data on container. DOL Service Contract Act Directory of Occupations Category 21110 applies.

Truck Driver- Heavy Trucks: Operates a truck with a load capacity in excess of 8,000 pounds {straight truck, usually ten wheels) within a city or industrial area and shall be licensed in accordance with local, state or federal laws. Transports material, merchandise, equipment or workers between various establishments, customers' houses or places of business, etc. May also load or unload trucks with or without helpers, make minor mechanical repairs and keep the vehicle in good working order and in compliance with state/local vehicle operating requirements. The contractor shall be liable for damage or loss of material being transported. Required to bend, kneel, stoop, stretch, reach, carry, climb and lift weights up to fifty pounds. DOL Service Contract Act Directory of Occupations Category 31363 applies. "Load Capacity" is defined as Empty Vehicle Weight {EVW) subtracted from Gross Vehicle Weight {GVW).

Truck Driver – Light Trucks: Operates a truck with a load capacity of 0 to 3,000 pounds (straight truck, usually ten wheels) within a city or industrial area and shall be licensed in accordance with local, state or federal laws. Transports material, merchandise, equipment or workers between various establishments, customers' houses or places of business, etc. May also load or unload trucks with or without helpers, make minor mechanical repairs and keep the vehicle in good working order and in compliance with state/local vehicle operating requirements. The contractor shall be liable for damage or loss of material being transported. Required to bend, kneel, stoop, stretch, reach, carry, climb and lift weights up to fifty pounds. DOL Service Contract Act Directory of Occupations Category 31363 applies. Load Capacity" is defined as Empty Vehicle Weight (EVW) subtracted from Gross Vehicle Weight (GVW).

General Clerk: Performs a combination of clerical tasks to support office, business, or administrative operations, such as: sorting, distributing, or collecting mail; maintaining records; receiving, preparing, or verifying documents; searching for and compiling information and data; responding to routine requests with standard answers (by phone, in person or by correspondence). The work requires basic knowledge of proper office and mailroom procedures. Workers follow prescribed procedures or steps to process paperwork; they may perform other routine office support work, (e.g., typing, filing, or operating a keyboard controlled data entry device to transcribe data into a form suitable for data processing). Clerks shall have a minimum of one year general experience.

Work requires familiarity with the terminology of the office unit The General Clerk selects appropriate methods from a wide variety of procedures or makes simple adaptations and interpretations of a limited number of substantive guides and manuals. The clerical steps often vary in type or sequence, depending on the task. Recognized problems are referred to others.

The General Clerk follows clearly detailed procedures in performing simple repetitive tasks in the same sequence. Responsibilities would include filing pre-coded documents in a chronological file, or operating office equipment, (e.g., mimeograph, photocopy, addressograph or mailing machine). This position follows clearly detailed specific procedures in completing several repetitive clerical steps performed in a prescribed or slightly varied sequence, such as coding and filing documents in an extensive alphabetical file; could involve simple posting to individual accounts, opening mail, calculating and posting charges to departmental accounts, operating basic office equipment, e.g., photocopier, facsimile, multi-fine phone/voicemail systems, mailing machines, and minimal computer programs. DOL Service Contract Act Directory of Occupations Category 01117 applies.

ARTICLE TWENTY-FIVE
SHIFT DIFFERENTIAL

Section 1. As of the effective date of this contract, any employee required to work the second shift shall receive a shift differential of thirty (30) cents per hour in addition to his regular straight-time hourly rate and any employee required to work the third shift shall receive a shift differential of forty (40) cents per hour in addition to his regular straight- time hourly rate.

Section 2. For the purpose of Shift Differentials, shifts starting between the hours of 0600 and 1200 is considered first shift. Shifts starting between the hours of 1201 and 2300 are second shift, and shifts starting between 2301 and 0559 will be considered third shift. First shift times may be set to start earlier by the Company.

ARTICLE TWENTY-SIX
CALL-IN PAY

Section 1. Call-in is defined as work outside an employee's regular schedule which causes an employee to make an extra trip to the job site. For each such call-in as defined above, an employee wll receive a minimum of four (4) hours pay at the appropriate premium rate of pay.

Section 2. Upon completion of the job which the employee was called in to perform, he will not be required to remain at the job site in order to receive the above-mentioned four (4) hours pay. An employee whose call-in time extends into his regular shift shall be paid at the appropriate premium rate for those hours which extend into the regular shift.

Section 3. The guarantee of this Article is inapplicable if the employee is called back to lock up important material for which he is responsible.

ARTICLE TWENTY-SEVEN
REPORTING PAY

Section 1. An employee who reports for work at his scheduled starting time and who finds no work available shall receive not less than four (4) hours pay at his regular straight time hourly rate. If he is told to leave Company premises in less than four (4) hours because no more work is available he shall receive four (4) hours pay. If he has been notified by the Company not to report to work he will receive no Reporting Pay.

Section 2. Reporting pay above four (4) hours per day will be paid after the first four (4) hours lost per month.

ARTICLE TWENTY-EIGHT
HEALTH AND LIFE INSURANCE PROGRAM

Section 1. Purpose and Eligibility. The purpose of this Article is to provide a life, health, and dental insurance program for employees covered by this Agreement who have completed their probation period with the Company and who are not deemed ineligible for coverage by the Company's insurance carrier(s). Dependents of employees with the Company will be covered by the benefits provided in Section 2(a) and (b) of this Article as long as they are not deemed ineligible for coverage by the Company's insurance carrier(s). Coverage for employees and their dependents will be defined as full time, those averaging 120 hours a month or more and part time, those averaging less than 120 hours a month. The determination of status for health insurance purpose will occur twice per year on a schedule determined by the Company.

The Company shall maintain the same benefit level for the duration of the new agreement as outlined under Section 2- "Schedule of Benefits". It is understood and agreed that the employee(s) electing coverage shall be required to pay the amounts set forth below per month toward the cost of such coverage.

4/1/2017 to 3/31/2018		
Coverage	**Medical**	**Dental**
Employee Only	$116.00	$15.00
Employee + Child(ren)	$226.00	$35.00
Employee + Spouse	$269.00	$45.00
Family	$326.00	$60.00

	4/1/2018 to 3/31/2019	
Employee Only	$129.50	$15.00
Employee + Child(ren)	$239.00	$35.00
Employee + Spouse	$282.50	$45.00
Family	$339.50	$60.00

	4/1/2019 to 3/31/2020	
Employee Only	$143.00	$15.00
Employee + Child(ren)	$252.50	$35.00
Employee + Spouse	$296.00	$45.00
Family	$352.50	$60.00

Section 2. Schedule of Benefits. The Company will obtain the following insurance plans on the terms agreed to by the Company and the Union. The benefits are set forth below.

Benefit Plans

a. Major Medical and Hospitalization Insurance including Prescription Card Drug Program.
b. Dental Insurance
c. Accidental Death and Dismemberment Insurance (50,000).
d. Life Insurance (50,000)
e. Sickness and Accident Insurance-The basic benefit of such insurance shall be:
   - Seven (7) working days out of work- benefits to begin on the eight working day
   - 60% of regular-straight time hourly rate.
   - Maximum benefits-90 days

The benefits provided under this program are described in a separate document which is incorporated herein by reference and is part of this Agreement.

Section 3. Continuation of Program. The program described in this Article will be continued for the duration of this Agreement and any extensions thereto.

Section 4. Administration

a. The program described in this Article shall be administered by the Company or through arrangements provided by it. Any contract(s) entered into by the Company with respects to benefits of this program shall be consistent with this Article.

b. The Company may establish reasonable rules for the administration of the program described in this Article.

Section 5. COBRA. Should at any time during the duration of this agreement, the Company(s) find that their status on the Government's contract changes. They will insure that all affected employees, unless laid off due to the changes in the contract itself, shall maintain their current levels of medical coverage through COBRA.

a. Should the Company's position on the contract change (i.e. from sub to prime or vice versa) and there is a shifting of employees from one contractor to another then unless the employees are immediately covered by the new company the cost of the COBRA shall be split equally between all three parties. One-third (1/3) equally to each the employee, the losing company, and the gaining company.

b. Should either Company find themselves no longer a part of the Government's contract that is covered by this agreement then it will no longer have any obligation to ensure that affected employees are able to maintain coverage. That obligation would then fall unto any successor contractor added to the contract. In this instance then the cost of COBRA would be borne equally between the employee and the successor contractor.

c. Sub-section A would still apply if an employee is shifted from the remaining Company to any successor contractor.

ARTICLE TWENTY-NINE
BONUS PAY

Section 1. Upon the termination of an employee from the Company he will receive their accrued bonus monies in accordance with the following:

Effective December 1, 2012 and for the duration of the contract, eligible employees will accrue twenty-five (25 cents) per hour for each straight time hour actually worked, which will be paid out every November of that year.

Section 2. Overtime, any type of unpaid leave, suspension or any time other than straight time hours actually paid shall not be counted for bonus pay purposes.

ARTICLE THIRTY
SAVINGS CLAUSE

All provisions of this Agreement are subject to all applicable state, local and federal laws and regulations thereunder. Any provisions of this Agreement which is determined to be illegal under any state or federal law or regulation shall be open for negotiation between the Company and the Union without affecting the remainder of this Agreement.

ARTICLE THIRTY- ONE
EMPLOYEE REFERRAL

The Company will notify the Union office for such additional workers as it may from time to time require. The Company may also hire workers from other sources. The Company shall supply the appropriate local union with the name and address of all such newly hired employee(s) within seven (7) days following beginning of employment.

ARTICLE THIRTY- TWO
VISITATION

To the extent permitted by the United States Navy, Union representatives may briefly visit the premises on which the Company operates for the purpose of conducting related Union business. It is understood that there is to be no interruption of the employees work process and the Union representative will make their presence known to the Company's supervisor. The Company will assist the Union with obtaining the necessary badges and stickers for entry to the bases

ARTICLE THIRTY-THREE
NO DISCRIMINATION

The Company and the Union, in the performance of this Agreement, agree not to discriminate against any employee or applicant for employment because of age, race, color, religion, creed, sex, national origin, handicap, veteran status or other status protected by applicable federal, state, or local law or regulation.

All references to "employee", "employees", "man", "men", "he", "him", or "his" in this Agreement refer to both male and female employees. The terms are used for the sole purpose of brevity and clarity of language construction only, and do not imply or refer to sex or gender in any way whatsoever.

The Company recognizes and will not interfere with the right of employees to become members of the Union and agrees that there shall be no discrimination, interference, restraint or coercion by the Company or any of its agencies against any employee because of membership in, or any activity on behalf of the Union.

ARTICLE THIRTY- FOUR
GENERAL AND MISCELLANEOUS

Section 1. An employee shall have access to and the right of inspection of his personnel record in the presence of a Company representative during normal business hours.

Section 2. No employee covered by this Agreement shall engage in solicitation of membership for any Union, collection of dues or other Union activities not provided for in this Agreement during their working time without the permission of the Company.

Section 3. Any written agreement relating to the interpretation or applicability of this Agreement made jointly by the Company and by the Union shall be binding on every individualemployee claiming or entitled to the benefits of this Agreement.

Section 4. As soon as possible the Company and the Union will cooperate in submitting and applying through the U.S. Navy Contracting Officer to the Administrator, Wage and Hour and Public Contracts Division, U.S. Department of Labor, for a wage determination with respect to the wage rates and fringe benefits as set forth in this Agreement.

Section 5. All compensation payable to an employee hereunder shall be paid bi-weekly or twice monthly at the employer's option. In the event a regular payday falls on a holiday provided for in the Agreement, the Company will make every reasonable effort to have paychecks prepared and distributed on the day preceding such holiday. In the event the distribution cannot reasonably be made prior to such holiday, the distribution will be made the first work day following such holiday. Errors on an employee's paycheck will be corrected and paid to the employee as quickly as reasonably possible after the error is brought to the attention of the company. Employees will be offered the option of direct deposit.

Section 6. If it is required by the Company to keep current HAZMAT and Forklift certification then the Company shall reimburse any cost to the employee.

ARTICLE THIRTY- FIVE
FUNERAL LEAVE

Section 1. In the case of the death in the immediate family of a permanent employee, the company will pay the employee straight-time pay not to exceed three (3) days total pay for necessary absence during the period beginning with the date of death and ending with the date of the funeral. The employee shall be paid the number of hours that he is regularly scheduled to work. For the purpose of this paragraph, immediate family is defined as: mother, father, step-parent, spouse, son, daughter, stepson, stepdaughter, brother, sister, mother-in-law, father-in-law, brother-in-law., sister-in-law, grandchildren and grandparents of the employee.

ARTICLE THIRTY-SIX
CENTRAL PENSION FUND

Section 1. Commencing on the 1st day of December, 2012 and for the duration of this Collective Bargaining Agreement, including any renewals or extensions thereof, the Company agrees that for each hour of pay paid to each employee to whom this agreement is applicable, for any reason provided for in this Collective Bargaining Agreement, it will pay to the Central Pension Fund of the International Union of Operating Engineers and Participating Employers at a rate of $1.65 per hour.

Section 2. Said Trust Fund shall be in compliance with all applicable laws, and the requirements of said Trust Fund are by this reference made a part of this agreement.

ARTICLE THIRTY-SEVEN
DURATION OF AGREEMENT

This Agreement shall be in full force and effect from April1, 2017 to and including March 31, 2020, and shall automatically renew itself for successive periods of one (1) year each, from year-to-year thereafter unless either party gives written notice to the other party of its desire to add, eliminate or modify any provision(s) of this Agreement. The negotiations will commence within thirty (30) days after the written notice. The parties agree to begin negotiations on the next contract during the fourth quarter of 2019.

IN WITNESS WHEREOF the parties hereto have set their hands on this 1st day of April 2017.

SAWTST, LLC.
169 Hillwood Circle
Newman, GA 30263

Sign________________________

Title COO

Date 24 March 2017

ProLog, Inc.
1253 Jensen Drive STE 100
Virginia Beach, VA 23451-5887

Sign________________________

Title PRESIDENT

Date 3/24/17

International Union of Operating Engineers
Local 147
400 N. Center Drive
Suite 123
Norfolk, VA 23502

Sign D.A. Remp

Title Business Manager

Date 3/24/2017

APPENDIX A
DEFINITIONS

Many of the terms noted below are referenced in the Collective Bargaining Agreement. These definitions are an attempt to further explain the meaning of these terms and their intent.

Straight Time/Hours Actually worked	The hours the employee actually works to perform their job. It does *not* include hours paid for overtime and paid time off.
Hours Paid	The hours the employee is paid for performing their job *which includes* overtime and paid time off.
Hours Worked	The hours the employee actually worked and the hours the employee is paid for time off. This definition applies when determining eligibility for overtime pay and the pension calculation.
Part Time Temporary	An employee whose work schedule is dictated by short-term surges in work needs, regardless of the number hours worked as provided for in the Provisions Agreement.
Probationary Employee	An employee who has worked less than the required 90 days. Probationary employees have no seniority and may be disciplined or discharged without cause and without recourse to the grievance procedures.
Probation Period	The period the employees must work in order to be eligible for most of the provisions of the CBA, including benefits. The probation period is 60 days.
Anniversary/Seniority date	The first day the employee starts working on the program.

APPENDIX 8

Standard Schedule of Disciplinary Offenses and Penalties

Nature of Offense	Range of Penalties for Stated Offenses						
	1st	1st	2nd	2nd	3rd	3rd	Reckoning Period
	Min	Max	Min	Max	Min	Max	
1. Unexcused failure to ring clock, sign attendance record or otherwise check-in.	Reprimand		1 Day	5 Days	5 Days	10 Days	6 Months
2. Unexcused tardiness – Disciplinary action is in addition to non-pay status for period of tardiness.	1 Day		1 Day	5 Days	10 Days	Removal	6 Months
3. Failure to carry or show proper identification on company and/or government premises as required by competent authority, or misplacement or loss of identification badge.	Reprimand		1 Day	5 Days	5 Days	10 Days	6 Months
4. Failure to promptly report personal injury.	Reprimand		1 Day	5 Days	5 Days	10 Days	1 Year
5. Unexcused or unauthorized absence on one or more scheduled days of work. • Charge may be used for failure to report for overtime. • The charge of excessive unauthorized absences with the penalty of removal may be used when the absence exceeds three work days or when it appears the employee has abandoned his/her position. Extenuating circumstances offered by the employee should be considered.	1 Day		1 Day	5 Days	10 Days	Removal	1 Year
6. Communications that result in government personnel nvolvement with employee/employer issues.	Reprimand	3 Days	5 Days	10 Days	10 Days	Removal	1 Year
7. Leaving job to which assigned or company premises at any time during working hours without permission.	Reprimand	3 Days	5 Days	10 Days	10 Days	Removal	1 Year
8. Failure to observe precautions for personal safety, posted rules, signs, written or oral safety instructions or to use protective clothing or equipment	Reprimand	3 Days	3 Days	5 Days	5 Days	Removal	1 Year
9. Violating traffic regulations, reckless driving on company or government premises or improper use/operation of equipment	Reprimand	3 Days	5 Days	10 Days	10 Days	Removal	1 Year
10. Loafing, wasting time or inattention to duty.	Reprimand	3 Days	3 Days	5 Days	5 Days	Removal	1 Year
11. Inadvertent errors resulting in spoilage, waste of material or delay in production.	Reprimand	3 Days	3 Days	5 Days	5 Days	Removal	1 Year
12. Failure or delay in carrying out orders, completing work assignments or following instructions of superiors.	Reprimand	3 Days	3 Days	5 Days	5 Days	Removal	1 Year
13. Failure to honor just debts without good cause.	Reprimand	3 Days	3 Days	5 Days	5 Days	Removal	1 Year
14. Unauthorized possession of, loss of, or damage to, company property, government property or the property of others, or endangering same through carelessness or neglect	Reprimand	5 Days	5 Days	10 Days	10 Days	Removal	1 Year
15. Gambling or unlawful betting on company premises.	Reprimand	5 Days	5 Days	10 Days	10 Days	Removal	1 Year
16. Covering up or attempting to conceal defective work, removing or destroying same without permission.	Reprimand	10 Days	10 Days	Removal	10 Days	Removal	1 Year
17. Disorderly conduct, fighting, threatening or attempting to inflict bodily injury to another, engaging in dangerous horseplay, or resisting com tent authority.	Reprimand	Removal	10 Days	Removal	10 Days	Removal	1 Year
18. Reporting for duty or being on duty under the influence of intoxicants, unauthorized possession of or attempting to bring intoxicants on company/government premises.	Reprimand	Removal	10 Days	Removal	10 Days	Removal	1 Year
19. Selling intoxicants on company/government premises.	Reprimand	Removal	10 Days	Removal	Removal		1 Year
20. Promotion of gambling on company/government premises.	Reprimand	Removal	10 Days	Removal	Removal		1 Year
21. Sleeping during work hours.	Reprimand	Removal	10 Days	Removal	Removal		1 Year

APPENDIX B

Standard Schedule of Disciplinary Offenses and Penalties

Range of Penalties for Stated Offenses							
	1st	1st	2nd	2nd	3rd	3rd	Reckoning Period
Nature of Offense	Min	Max	Min	Max	Min	Max	
22. Failure to safeguard classified material. ▪ Consider the nature of the employee's position or assignment, whether disclosure resulted and the classification of the jeopardized matter.	Reprimand	Removal	10 Days	Removal	Removal		1 Year
23. Smoking in unauthorized places or carrying matches in explosive area.	Reprimand	Removal	10 Days	Removal	Removal		1 Year
24. Endangering the safety of or causing injury to personnel through carelessness, inattention or negligence.	Reprimand	Removal	10 Days	Removal	Removal		1 Year
25. Making irresponsible statements which are slanderous or defamatory about other employees or officials. ▪ Consider the duties and position of the employee, the nature of the statements made and the extent to which they damage the activity of the injured party, the nature and timing of any retraction by the employee and the extent to which the damaging statements are supported by established facts.	Reprimand	Removal	10 Days	Removal	Removal		1 Year
26. Intentional damage to company, government, or the property of others.	Reprimand	Removal	10 Days	Removal	Removal		2 Years
27. Actual or attempted theft of company, government, or the property of others. ▪ Whether or not restitution was made should enter into the determination of the penalty for the offense.	Reprimand	Removal	10 Days	Removal	Removal		2 Years
28. Immoral indecent or disgraceful conduct	Reprimand	Removal	10 Days	Removal	Removal		2 Years
29. Disrespectful conduct, use of insulting, abusive or obscene language to or about another employee.	Reprimand	Removal	10 Days	Removal	Removal		1 Year
30. Discrimination against an employee or applicant because of race, color, sex, or national origin or any reprisal action against an employee.	Reprimand	Removal	10 Days	Removal	Removal		1 Year
31. Falsification, misstatement, exaggeration or concealment of material fact in connection with employment, promotion, any record investigation or other property proceeding.	Reprimand	Removal	10 Days	Removal	Removal		1 Year
32. Falsifying any record for oneself or other employee.	Reprimand	Removal	10 Days	Removal	Removal		1 Year
33. Disobedience to constituted authorities or deliberate refusal to carry out any proper order from any official having responsibiity for the work of the employee's insubordination.	Reprimand	Removal	10 Days	Removal	Removal		2 Years
34. Failure to immediately report damage to freight, property or equipment (government, company, or private).	Reprimand	Removal	10 Days	Removal	Removal		1 Year

APPENDIX C
Wage Table

Labor Category	**4/1/2017**	**4/1/2018**	**4/1/2019**
General Clerk I	$14.52	$14.96	$15.45
General Clerk II	$20.17	$20.78	$21.40
General Clerk III	$20.79	$21.41	$22.05
Shipping Packer	$20.79	$21.41	$22.05
Supply Technician	$30.07	$30.77	$31.47
Truck Driver, Heavy Truck	$22.69	$22.94	$23.59
Truck Driver, Light Truck	$20.79	$21.41	$22.05
Warehouse Specialist	$20.79	$21.41	$22.05